

## CCRB INVESTIGATIVE RECOMMENDATION

|                                                  |                                     |                                     |                                                       |                                               |                                 |
|--------------------------------------------------|-------------------------------------|-------------------------------------|-------------------------------------------------------|-----------------------------------------------|---------------------------------|
| Investigator:<br>Moriba Geoffroy                 | Team:<br>Squad #03                  | CCRB Case #:<br>202402971           | <input type="checkbox"/> Force                        | <input checked="" type="checkbox"/> Discourt. | <input type="checkbox"/> U.S.   |
|                                                  |                                     |                                     | <input checked="" type="checkbox"/> Abuse             | <input type="checkbox"/> O.L.                 | <input type="checkbox"/> Injury |
| Incident Date(s)<br>Friday, 02/09/2024 9:00 PM   | Location of Incident:<br>§ 87(2)(b) | 18 Mo. SOL<br>8/9/2025              | Precinct:<br>43                                       |                                               |                                 |
| Date/Time CV Reported<br>Sun, 03/24/2024 3:14 PM | CV Reported At:<br>CCRB             | How CV Reported:<br>On-line website | Date/Time Received at CCRB<br>Sun, 03/24/2024 3:14 PM |                                               |                                 |

| Complainant/Victim | Type | Home Address |
|--------------------|------|--------------|
|                    |      |              |
|                    |      |              |
|                    |      |              |
|                    |      |              |
|                    |      |              |

| Witness(es) | Home Address |
|-------------|--------------|
|             |              |

| Subject Officer(s)  | Shield | TaxID  | Command |
|---------------------|--------|--------|---------|
| 1. PO Justin Bauman | 08291  | 965946 | 043 PCT |
| 2. PO Felix Jimenez | 25936  | 972021 | 043 PCT |
| 3. Officers         |        |        |         |

| Witness Officer(s)      | Shield No | Tax No | Cmd Name |
|-------------------------|-----------|--------|----------|
| 1. PO Jaleel Gatling    | 01771     | 964526 | 043 PCT  |
| 2. PO Angel Suazopelaez | 19969     | 968150 | 043 PCT  |

| Officer(s)           | Allegation                                                                                    | Inv. Div. Recommendation   |
|----------------------|-----------------------------------------------------------------------------------------------|----------------------------|
| A . PO Felix Jimenez | Abuse: Police Officer Felix Jimenez questioned an individual.                                 | A . Substantiated          |
| B . PO Felix Jimenez | Abuse: Police Officer Felix Jimenez frisked an individual.                                    | B . Within NYPD Guidelines |
| C . PO Felix Jimenez | Abuse: Police Officer Felix Jimenez searched an individual.                                   | C . Within NYPD Guidelines |
| D . PO Felix Jimenez | Abuse: Police Officer Felix Jimenez questioned an individual.                                 | D . Substantiated          |
| E . PO Felix Jimenez | Abuse: Police Officer Felix Jimenez frisked an individual.                                    | E . Substantiated          |
| F . PO Felix Jimenez | Abuse: Police Officer Felix Jimenez questioned § 87(2)(b)                                     | F . Substantiated          |
| G . PO Felix Jimenez | Abuse: Police Officer Felix Jimenez frisked § 87(2)(b)                                        | G . Substantiated          |
| H . PO Felix Jimenez | Abuse: Police Officer Felix Jimenez searched the vehicle in which § 87(2)(b) was an occupant. | H . Substantiated          |
| I . Officers         | Abuse: Officers refused to provide their name to individuals.                                 | I . Unfounded              |
| J . Officers         | Abuse: Officers refused to provide their shield number to individuals.                        | J . Unfounded              |
| K . Officers         | Abuse: Officers failed to provide individuals with a business card.                           | K . Unfounded              |
| L . PO Justin Bauman | Discourtesy: Police Officer Justin Bauman spoke discourteously to an individual.              | L . Substantiated          |

| Officer(s)           | Allegation                                                                                | Inv. Div. Recommendation |
|----------------------|-------------------------------------------------------------------------------------------|--------------------------|
| M . PO Justin Bauman | Abuse: Police Officer Justin Bauman failed to provide an individual with a business card. | M . Substantiated        |

### Case Summary

On March 24, 2024, § 87(2)(b) filed this complaint on behalf of three other individuals, via the online website.

On February 9, 2024, at approximately 9:00 p.m., in the vicinity of § 87(2)(b) in the Bronx, § 87(2)(b) was sitting in his vehicle, waiting for his friend, only known to the investigation as § 87(2)(b) to arrive. In the vehicle with him was his brother, § 87(2)(b) and two other friends, only known to the investigation as § 87(2)(b) and § 87(2)(b). While waiting, Police Officer Jaleel Gatling, Police Officer Angel Suazopelaez, Police Officer Justin Bauman, and Police Officer Felix Jimenez, all from the 43<sup>rd</sup> Precinct, stopped behind § 87(2)(b) vehicle. PO Jimenez told everyone to step out of the vehicle. PO Jimenez questioned (**Allegation A: Abuse of Authority; Substantiated**), frisked (**Allegation B: Abuse of Authority; Within NYPD Guidelines**), and searched (**Allegation C: Abuse of Authority; Within NYPD Guidelines**) § 87(2)(b). PO Jimenez then questioned and frisked § 87(2)(b) (**Allegations D & E: Abuse of Authority; Substantiated**). PO Jimenez questioned and frisked § 87(2)(b) (**Allegations F & G: Abuse of Authority; Substantiated**). PO Jimenez searched § 87(2)(b) vehicle (**Allegation H: Abuse of Authority; Substantiated**). Officers refused to provide their names, shield numbers, and Right to Know Act (RTKA) business cards to the individuals present (**Allegations I, J, & K: Abuse of Authority; Unfounded**). PO Bauman spoke discourteously towards an individual, only known to the investigation as § 87(2)(b) who approached to observe the encounter (**Allegation L: Discourtesy; Substantiated**). PO Bauman refused to provide a business card to § 87(2)(b) (**Allegation M: Abuse of Authority; Substantiated**). § 87(2)(b) was issued a summons § 87(2)(b) in regard to this incident [BR 1].

The investigation obtained body worn camera (BWC) video from NYPD Legal. [BR 2]

### Findings and Recommendations

**Allegation (A) Abuse of Authority: Police Officer Felix Jimenez questioned an individual.**  
**Allegation (B) Abuse of Authority: Police Officer Felix Jimenez frisked an individual.**  
**Allegation (C) Abuse of Authority: Police Officer Felix Jimenez searched an individual.**  
**Allegation (D) Abuse of Authority: Police Officer Felix Jimenez questioned an individual.**  
**Allegation (E) Abuse of Authority: Police Officer Felix Jimenez frisked an individual.**  
**Allegation (F) Abuse of Authority: Police Officer Felix Jimenez questioned § 87(2)(b)**  
**Allegation (G) Abuse of Authority: Police Officer Felix Jimenez frisked § 87(2)(b)**  
**Allegation (H) Abuse of Authority: Police Officer Felix Jimenez searched the vehicle in which § 87(2)(b) was an occupant.**

§ 87(2)(b) stated that at approximately 9:00 p.m., in the vicinity of § 87(2)(b) in the Bronx, he was double parked on the street in the driver's seat. § 87(2)(b) was waiting on his brother, § 87(2)(b) to get inside the vehicle. In the car were three other individuals, his brother § 87(2)(b) and two other friends, only known to the investigation as § 87(2)(b) and § 87(2)(b). § 87(2)(b) was seated in the back seat on the right, § 87(2)(b) was seated in the middle and § 87(2)(b) was seated behind § 87(2)(b). A police vehicle drove up to the side of § 87(2)(b) vehicle. The officers looked inside of § 87(2)(b) vehicle, put their car in reverse, and parked behind him. [BR 3]

The officers then exited their vehicle and pulled them over. When the officers exited their vehicle, one of them told § 87(2)(b) who had approached from elsewhere, to stay on the sidewalk and not interfere with the stop. § 87(2)(b) complied and stood on the sidewalk. Four officers surrounded § 87(2)(b) vehicle and positioned themselves at each window. PO Jimenez approached the driver's window and began speaking to § 87(2)(b). PO Jimenez said that § 87(2)(b) was double parked, and he did not have on his hazard lights. § 87(2)(b) asked PO Jimenez if this was illegal

and said he was waiting on a passenger. PO Jimenez replied, "It does not matter, it's illegal to be double parked period." PO Jimenez then told § 87(2)(b) to step out of the vehicle. § 87(2)(b) complied and began stepping out of the vehicle. § 87(2)(b) had a blade on him and the officers took it. When they got out of the vehicle, the officers told them to step to the back. § 87(2)(b) noticed PO Jimenez standing at the driver's door using his flashlight and pointing it into the vehicle. PO Jimenez's hand entered § 87(2)(b) vehicle while holding onto the flashlight. § 87(2)(b) walked behind PO Jimenez and said, "I do not give you consent to search my vehicle." PO Jimenez backed out of the vehicle soon after. **[BR 3]**

PO Jimenez' BWC footage at 1:00, shows him stepping out and approaching a double-parked vehicle. He asks § 87(2)(b) for his license, and he provides it. At 1:29, PO Jimenez tells § 87(2)(b) that he can get a summons for being double parked and not having his hazard lights activated. He also points to the individuals in the backseat and says they each could get a summons for not having their seatbelts on (in the video it is apparent that they are not wearing seatbelts). PO Jimenez then tells everyone to get out of the vehicle. At 2:08, PO Jimenez opens the door and tells § 87(2)(b) to step out of the vehicle. § 87(2)(b) steps out and PO Jimenez asks him if he has any knives on him. § 87(2)(b) says he has a knife in his pocket. At 2:25, PO Jimenez searches § 87(2)(b) pockets for the knife following confusion about which pocket the knife is in. At 2:58, § 87(2)(b) steps out and is frisked by PO Jimenez. At 3:08, § 87(2)(b) steps out of the vehicle and is frisked by PO Jimenez. At 3:29, PO Jimenez asks if he can take a look into the vehicle. § 87(2)(b) says he does not mind. At 3:38, PO Jimenez approaches the driver's seat and bends forward into the vehicle and teaches toward the center console. § 87(2)(b) tells PO Jimenez that he does not get permission to search his vehicle. PO Jimenez exits the vehicle and says, "I just asked you and you told me yes." § 87(2)(b) says "I just told you no." **[BR 4]**

PO Gatling and PO Suazopelaez were not interviewed, as their statements would not have affected the disposition.

PO Jimenez stated that at approximately 9:00 p.m., in the vicinity of § 87(2)(b) in the Bronx, he noticed a vehicle that was double-parked. PO Jimenez and the officers then conducted a car stop. PO Jimenez approached the driver's side window and began speaking with the driver, § 87(2)(b). PO Jimenez explained to § 87(2)(b) why he was being stopped. There were three passengers in the back seat making sudden movements. He described these movements as shifting their bodies from side to side, moving downward, and tensing up. These movements gave PO Jimenez reasonable suspicion that they may have weapons on them. He then asked the three passengers to exit the vehicle. **[BR 5]**

PO Jimenez admitted that he did ask the first passenger § 87(2)(b) who stepped out if he had any weapons on him. He asked this because of the shifting movements the passengers previously made. The first passenger said he had a knife, which gave PO Jimenez reasonable grounds to believe that there could be other weapons in the vehicle. PO Jimenez frisked the passenger § 87(2)(b) for the knife, then searched him to retrieve it. PO Jimenez asked the other two passengers and § 87(2)(b) if they had any weapons on them. He also frisked the other two passengers and § 87(2)(b) for weapons. PO Jimenez said he frisked § 87(2)(b) because of the weapon he found on the first passenger that exited the vehicle. PO Jimenez said from there, he asked for consent from § 87(2)(b) to conduct a vehicle search. § 87(2)(b) replied, "I don't mind," which to PO Jimenez was viewed as consent. PO Jimenez then stuck his head into the driver's side of the vehicle, not further than the center console. § 87(2)(b) then revoked his consent, and PO Jimenez immediately stopped his search. **[BR 5]**

Once an officer's inquiry becomes extended, accusatory, and focuses on the possible criminality of the person approached, the inquiry must be supported by founded suspicion that criminality is afoot. People v. Hollman, 79 N.Y.2d 181 (1992) [BR20]

Innocuous behavior which is susceptible of innocent as well as culpable interpretations will not, by itself, generate a founded or reasonable suspicion that a crime is at hand. People v. De Bour, 40 N.Y.2d 210 (1976) (BR 21).

In People v. Garcia, 20 N.Y.3d 317 (2012), the court "concluded that the standards of De Bour and Hollman govern police-citizen encounters during lawful traffic stops[,] and thus, "a police officer who asks a private citizen if he or she is in possession of a weapon must have founded suspicion that criminality is afoot" (BR26 ).

People v. Batista, 88 N.Y.2d 650, states that the propriety of a frisk is not automatic. Officers must have knowledge of some fact or circumstance that supports a reasonable suspicion that the suspect is armed or poses a threat to safety. [BR 7]

In People v. Belton, 55 N.Y.2d 49 (1981), the court ruled that a warrantless vehicle search, conducted after the occupants were outside the vehicle, is only permissible when an officer has probable cause to believe there is a danger to his safety, or to prevent the destruction of evidence (BR 22).

In People v. Mundo, 286 A.D.2d 592 (2001), the court established that during a vehicle stop, furtive movements alone will not justify a warrantless vehicle search and must be combined with additional circumstances to establish probable cause for the search (BR23).

A request for consent to search constitutes a common-law inquiry and must be supported by a founded suspicion that criminality is afoot. People v. Williams, 300 A.D.2d 684 (2002) [BR 27]

NYC Administrative Code, Section 14-173 states that when obtaining voluntary, knowing, and intelligent consent prior to the search of a person, or a person's vehicle, officers should articulate, using plain and simple language delivered in a non-threatening manner, that the person who is the subject of the search is being asked to voluntarily, knowingly, and intelligently consent to such search, and explaining that such search will not be conducted if such person refuses to provide consent to such search, securing such consent without threats or promises of any kind being made to such person, and affirming that such person understands the information communicated and refrain from conducting such search where such consent has not been obtained (BR24).

§ 87(2)(g)

§ 87(2)(g) BWC video, which primarily shows the passengers of the vehicle sitting in the backseat, mostly still, and recording the officers. § 87(2)(g)

§ 87(2)(g) it is recommended that **Allegations A, D, and F** be closed as **Substantiated**.

When PO Jimenez questioned § 87(2)(b) and he stated that he possessed a knife, PO Jimenez frisked and searched him to retrieve the knife. § 87(2)(g)

§ 87(2)(g) it is recommended that **Allegations B and C** be closed as *Within NYPD Guidelines*. § 87(2)(g)

PO Jimenez said he frisked the other passengers because of the movements they made in the back seat. § 87(2)(g)

§ 87(2)(g) it is recommended that **Allegations E and G** be closed as *Substantiated*.

§ 87(2)(g) the BWC video shows § 87(2)(b) saying, “I don’t mind,” in response to PO Jimenez’ request to search the vehicle, PO Jimenez did not advise him that he could refuse consent or that the search would not occur without his permission, § 87(2)(g) it is recommended that **Allegation H** be closed as *Substantiated*.

**Allegation (I) Abuse of Authority: Officers refused to provide their name to individuals.**

**Allegation (J) Abuse of Authority: Officers refused to provide their shield number to individuals.**

**Allegation (K) Abuse of Authority: Officers failed to provide individuals with a business card.**

**Allegation (L) Discourtesy: Police Officer Justin Bauman spoke discourteously to an individual.**

**Allegation (M) Abuse of Authority: Police Officer Justin Bauman failed to provide § 87(2)(b) with a business card.**

§ 87(2)(b) stated after he had been ordered to exit the vehicle, PO Gatling came from behind § 87(2)(b) and screamed in his face, “Don’t approach my fellow officer like that.” PO Gatling then placed his hand on § 87(2)(b) left arm and guided him to the back of the vehicle. § 87(2)(b) and the passengers were speaking to the officers about the stop. PO Gatling went into the police vehicle soon after. § 87(2)(b) and the passengers began asking the officers for their IDs and the officers replied, “No, we are not giving them to you unless you are in the car.” Approximately 10 minutes later, PO Gatling exited the police vehicle and told everyone to get back into § 87(2)(b) vehicle. They all got into the vehicle, and everyone asked for the officer’s IDs again. PO Suazopelaez, PO Gatling, and PO Bauman all provided § 87(2)(b) and the passengers with their names and badge numbers. PO Jimenez did not provide his name and badge number. The officers got into their vehicles and left soon after. [BR 3]

PO Jimenez’s BWC footage at 16:20, shows § 87(2)(b) saying he needs badge numbers and cards. PO Jimenez says, “They want badge numbers and cards, now I really got to do my job.” At 16:44, PO Bauman takes a business card from PO Jimenez to write down his information. PO Jimenez tries to give two of the individuals in the car his business card and they say that they do not want it. He asks § 87(2)(b) if he wants a card and he responds saying, “No, I just need the other

officer's business card, I don't need you." At 16:52, PO Bauman takes another one of PO Jimenez's business cards to write his information. **[BR 4]**

PO Suazopelaez BWC footage at 3:10, shows § 87(2)(b) using his phone, asking for PO Suazopelaez's name and badge number and he provides it. At 16:13, PO Suazopelaez provides § 87(2)(b) Barga with his business card. At 17:25, § 87(2)(b) is provided with two more business cards. The video does not show which officers gave him a business card. **[BR 9]**

PO Bauman's BWC footage at 3:13, shows § 87(2)(b) asking PO Bauman and PO Suazopelaez for their names and badge numbers and they provide it. At 03:17, § 87(2)(b) approaches the area where the car stop is being conducted from the sidewalk and appears to be recording. At 3:49, § 87(2)(b) says again that he wants everyone's card after this, speaking to nobody in particular. § 87(2)(b) speaks aloud to § 87(2)(b) telling him to let the officers search him, and then speaking to someone on the phone. He continues speaking aloud making various statements to the officers about a lawsuit his rights, among other things. At 7:06, § 87(2)(b) asks the officers for their cards again. § 87(2)(b) remains at the sidewalk recording and interjecting various statements about what is happening. At 15:59, § 87(2)(b) says, "I need everybody's cards." PO Bauman says, "I don't got to give you shit." At 16:13, § 87(2)(b) approaches PO Bauman with his cellphone in his hand. He asks PO Bauman, "Why did all three of them give a card except you?" PO Bauman says, "You got my name, you have nothing to do with this interaction, stupid." § 87(2)(b) replies, "Shut the fuck up, big head." One of the individuals then asks PO Bauman for his card. At 16:58, PO Bauman provides his card to two individuals. **[BR 10]**

The dash camera footage at 17:40 shows PO Gatling and PO Bauman providing § 87(2)(b) with their business cards. **[BR 11]**

PO Gatling and PO Suazopelaez were not interviewed, as their statements would not have affected the disposition.

PO Bauman stated that at approximately 9:00 p.m., in the vicinity of § 87(2)(b) in the Bronx, the officers noticed a vehicle that was double-parked. The officers stopped the vehicle and conducted a car stop. PO Bauman got out of the police vehicle and approached the rear right passenger. PO Bauman stayed in this area for the duration of the car stop. There was another individual, § 87(2)(b) on the sidewalk who began talking. § 87(2)(b) was not involved in the car stop. PO Bauman stayed in the same location to make sure § 87(2)(b) did not interfere with the car stop, as a safety precaution. PO Bauman recalled the passengers asking for his name and shield number and he provided it. He did not recall being asked for a business card by the passengers. By the end of the car stop, PO Bauman admitted that he was frustrated because they had been outside for a while, and it was cold. § 87(2)(b) kept on talking to him and approached him, asking him for a business card. PO Bauman explained to § 87(2)(b) that he did not need to provide him with one. PO Bauman told § 87(2)(b) that he was not giving him shit and he called him stupid. He said this because he was frustrated in that moment and there was no law enforcement purpose behind saying this. **[BR 12]**

NYPD Patrol Guide Procedure 200-02 states that officers must value human life, respect the dignity of each individual and render services with courtesy and civility. Officers must maintain a higher standard of integrity than is generally expected of others **[BR 13]**

Uniformed members of the service may offer business cards, as appropriate, and at their discretion, in situations that fall outside of the defined law enforcement activities. In addition, members are also to provide business cards, as appropriate, at the request of members of the public. NYPD Administrative Guide, Procedure 304-11 (**BR25**).

The BWC video and dashcam video shows the officers present offering their names, shield numbers, and business cards to the various civilians who were involved in the vehicle stop and requested this information. § 87(2)(g)

§ 87(2)(b) it is recommended that **Allegations I, J, and K** be closed as **Unfounded**.

BWC video captures PO Bauman tell § 87(2)(b) “I don’t have to give you shit,” and call him “stupid.” § 87(2)(g)

§ 87(2)(b) While § 87(2)(b) who was uninvolved in the vehicle stop, approached and continuously complained about the police encounter from the sidewalk as the event unfolded, he nevertheless did not interfere with the officers’ ability to conclude the various law enforcement activities that occurred. § 87(2)(g)

§ 87(2)(b) it is recommended that **Allegation L** be closed as **Substantiated**.

PO Bauman asserted that he was not required to offer § 87(2)(b) who was not part of the vehicle stop, a business card. § 87(2)(g)

§ 87(2)(b) it is recommended that **Allegation M** be closed as **Substantiated**.

#### **Civilian and Officer CCRB Histories**

- This is the first CCRB complaint to which § 87(2)(b) has been a party. [BR 14]
- This is the first CCRB complaint to which § 87(2)(b) has been a party. [BR 15]
- PO Gatling has been a member of service for seven years and this is the first CCRB complaint to which he has been a subject.
- PO Jimenez has been a member of service for three years and has been a subject in five other CCRB complaints and 15 allegations, none of which were substantiated. § 87(2)(g)
- PO Suazopelaez has been a member of service for five years and has been a subject in five other CCRB complaints and 18 allegations, of which two were substantiated.:
  - **202107492** involved a substantiated allegation of a vehicle search against PO Suazopelaez. The Board recommended Formalized Training, and the NYPD imposed Formalized Training.
  - **202305280** involved a substantiated allegation of a vehicle search against PO Suazopelaez. The Board recommended Command Discipline A and the NYPD has not yet imposed discipline.
- PO Bauman has been a member of service for six years and has been a subject in three other CCRB complaints and 16 allegations, of which one was substantiated.:
  - **202305267** involved a substantiated allegation of a discourteous word against PO Bauman. The Board recommended Command Discipline A, and the NYPD imposed No Penalty.

#### **Mediation, Civil, and Criminal Histories**

- § 87(2)(b) declined to mediate this complaint.
- As of February 12, 2025, the New York City Office of the Comptroller has no record of a Notice of Claim being filed by § 87(2)(b) in regard to this incident. [BR 16]



- As of February 12, 2025, the New York City Office of the Comptroller has no record of a Notice of Claim being filed by § 87(2)(b) in regard to this incident. **[BR 17]**
- [§ 87(2)(b)] [§§ 86(1)(3)&(4)] [§ 87(2)(c)]

#### **RPBP History**

- This complaint did not contain any allegations of Racial Profiling/Bias-Based Policing.

Squad No.: 3

|               |                        |                             |                  |
|---------------|------------------------|-----------------------------|------------------|
| Investigator: | <u>Moriba Geoffroy</u> | <u>Inv. Moriba Geoffroy</u> | <u>5/12/2025</u> |
|               | Signature              | Print Title & Name          | Date             |

|               |                        |                           |                  |
|---------------|------------------------|---------------------------|------------------|
| Squad Leader: | <u>Rolando Vasquez</u> | <u>IM Rolando Vasquez</u> | <u>5/12/2025</u> |
|               | Signature              | Print Title & Name        | Date             |